

Poonam Dixit v. State of U.P. And 3 Others

Allahabad High Court · Division Bench · 24 January 2025 · 2025:AHC:12656-DB · Writ-C No. 2424 of 2025 · **Writ disposed; apply under Clause 6.5(a) within 10 days, decide in one month.**

HEADNOTE

Writ alleging that no electricity connection was ever taken in the petitioner's name disposed of without examining merits. Petitioner directed to apply under Clause 6.5(a) of the U.P. Electricity Supply Code within ten days; the authority to decide within one month.

FACTUAL SUMMARY

Poonam Dixit filed a writ petition in the Allahabad High Court stating that she had never taken any electricity connection in her name and was aggrieved by a connection standing against her. Counsel for the Electricity Department submitted that any such mistake could be rectified by approaching the relevant authority under Clause 6.5(a) of the U.P. Electricity Supply Code. The Court heard counsel for the petitioner, the Standing Counsel, and the Electricity Department.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(a)

consumer grievance redressal

HOLDING

Without examining merits, a writ complaining that no electricity connection was ever taken in the petitioner's name is disposed of by directing that if she applies under Clause 6.5(a) of the U.P. Electricity Supply Code within ten days, the authority shall decide the application within one month. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER HAD NEVER TAKEN AN ELECTRICITY CONNECTION IN HER NAME

Court expressly declined to go into merits and relegated the petitioner to Clause 6.5(a). ¶ 4